

		While Defendant has not himself placed his medical history, or his medical condition, at issue, a compelling interest exists to warrant discovery of this information. Namely, Plaintiff is entitled to conduct discovery on the issue of whether Defendant's prior kidney removal caused, or contributed to, this accident. In his Opposition, Defendant argues this discovery is nothing more than a fishing expedition, as there was no evidence Defendant was even intoxicated at the time of the accident. However, the point of discovery is to reasonably assist the parties with evaluating the case, preparing the trial, and with facilitating settlement. Defendant's position would prevent Plaintiff from doing so. Defendant also argues, rather than obtaining these medical records, Plaintiff can merely ask Defendant whether, after his surgery, he was ever warned to not drive after drinking. However, Plaintiff is entitled to conduct discovery, within the bounds of the Discovery Act, as he sees fit, and his ability to obtain information regarding Defendant's prior kidney removal should not be as limited as Defendant advocates for. While the parties disagree whether it will eventually be necessary to have the physician who performed the kidney removal testify at trial, such arguments are beyond the point. At this juncture, the Court finds Plaintiff has established a compelling interest to be entitled to Defendant's medical records regarding his prior kidney removal. The Court grants the Motion to Compel Further Responses to Request for Production nos. 53 and 54. <u>Sanctions</u> Under the Code of Civil Procedure, monetary sanctions against the party who unsuccessfully makes or opposes a motion to compel is mandatory, unless the Court finds the party subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h).) The Court finds substantial justification for the opposition, and thus declines to issue sanctions. Moving party to give notice.
5	Nichols vs Pacifica Medical towers	1. <u>Motion to Compel Answers to Form Interrogatories</u>

Owners Association	2. <u>Motion to Compel Answers to Special Interrogatories</u> 3. <u>Motion to Compel Production</u> TENTATIVE RULING: Plaintiff Brent Owen Nichols, Trustee Of The Nichols Family Trust, Dated February 10, 2010 moves to compel Defendant Pacific Medical Towers Owners Association to provide full and complete verified answers, without objections, to Plaintiff’s Special Interrogatories, Set No. One and Form Interrogatories – General, Set No. 1. Defendant has not served responses to Plaintiff’s Special Interrogatories, Set No. One and Form Interrogatories – General, Set No. 1. Plaintiff’s unopposed motion is GRANTED. Due to Defendant’s failure to serve timely responses to the interrogatories, Defendant has “waive[d] any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product” (Code Civ. Proc., § 2030.290(a).) Defendant Pacific Medical Towers Owners Association shall provide responses, without objections, to Special Interrogatories, Set No. One and Form Interrogatories – General, Set No. 1 by December 20, 2023. Plaintiff’s request for sanctions is GRANTED. Defendant Pacific Medical Towers Owners Association shall pay sanctions in the amount of \$750.00 to Plaintiff Brent Owen Nichols by December 20, 2023. (See, e.g., Code Civ. Proc., § 2023.010(d); <i>id.</i> § 2030.290(c).) Plaintiff to give notice. <u>Motion to Compel Responses to Demand for Inspection and Production of Documents</u> Plaintiff Brent Owen Nichols, Trustee Of The Nichols Family Trust, Dated February 10, 2010 moves to compel Defendant Pacific Medical Towers Owners Association to provide responses to Plaintiff’s Request for Production of Documents, Set No. 1. Defendant has not served responses to Plaintiff’s Request for Production of Documents, Set No. One. Plaintiff’s unopposed motion is GRANTED. Due to Defendant’s failure to serve timely responses to the requests, Defendant has “waive[d] any objection to the demand,
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		including one based on privilege or on the protection for work product” (Code Civ. Proc., § 2031.300(a).) Defendant Pacific Medical Towers Owners Association shall produce documents and provide responses, without objections, to Plaintiff’s Production of Documents, Set No. One by December 20, 2023. Plaintiff’s request for sanctions is GRANTED. Defendant Pacific Medical Towers Owners Association shall pay sanctions in the amount of \$1,000.00 to Plaintiff Brent Owen Nichols by December 20, 2023. (See, e.g., Code Civ. Proc., § 2023.010(d); <i>id.</i> § 2031.300(c).) Plaintiff to give notice.
6	Pascual vs Huntington Valley Healthcare Center	1. <u>Petition to Compel Arbitration</u> 2. <u>Case Management Conference</u> TENTATIVE RULING: <u>Petition to Compel Arbitration.</u> Defendant Douglas Fir Holdings, dba Huntington Valley Healthcare Center moves to compel Plaintiffs Myrna Pascual, Myrine Smith, Ronald Pascual, Normal Pascual, Anthony Pascual, and Serafin Pascual, Jr., by and through his successor in interest Myrna Pascual to arbitrate the claims asserted in this lawsuit. For the following reasons, the petition is GRANTED in part and DENIED in part. <u>The Arbitration Agreement</u> The Arbitration Agreement at issue provides in pertinent part: It is understood that any dispute as to medical malpractice, that is as to whether any medical services rendered under this contract were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered or not rendered, will be determined by submission to arbitration as provided by the Federal Arbitration Act, 9 U.S.C. Section 1 <i>et seq</i> (“F.A.A.”).... It is understood that any and all other disputes, controversies, demands, or claims that relate to or arise out of the provision of services by the Facility to Resident, including, but not limited to, any action for injury or death arising from negligence, wrongful death, intentional tort, or statutory causes of action ... will be determined by submissions to arbitration as provided by the F.A.A.